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Final Pretrial Order

United States District Court for the Western District of North Carolina

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

Civil Action No. SYN-WDNC-24-CV-0520

Entered September 12, 2025

The Court, the Honorable Miriam D. Carver presiding, enters this order after reviewing the parties' submissions and conducting a pretrial session. Jury trial begins October 6, 2025. The parties estimate six trial days, with October 13 excluded from the sitting calendar. Avery Thorn will serve as the exercise courtroom clerk.

The operative claim is Blue Ember's North Carolina breach-of-contract claim arising from Granite Heron's transportation of BE-214 validation lot BE214-VL-2409A. Granite Heron denies recoverable causation and damages and asserts contract limitations, failure to mitigate, credits, and related defenses.

This order controls the course of trial unless modified to prevent manifest injustice. A summary of a party's position is not a finding. Stated estimates and anticipated proof do not guarantee admissibility. All persons, companies, facilities, transactions, docket conventions, and events are fictional and exist only for the training exercise.

The Court retains authority to manage presentation, juror scheduling, and evidentiary sequencing throughout the sitting.

Jurisdiction, venue, and governing law

The parties agree that complete diversity exists and that the amount placed in controversy exceeds the statutory threshold. Blue Ember is treated as a citizen of Delaware and North Carolina through its sole member. Granite Heron is a Georgia corporation with its principal place of business in Georgia. No party contests personal jurisdiction or venue in this district.

North Carolina substantive law governs the contract issues under the master agreement's choice provision. Federal procedural and evidentiary rules govern the trial. The parties may preserve a legal objection without arguing law before the jury.

The jury will decide disputed facts concerning breach, causation, gross damages, and the affirmative mitigation defense under the instructions ultimately given. The Court will decide interpretation issues that remain legal questions and will apply the jury's answers when entering judgment.

The action concerns a single shipment and related consequences. No claim for personal injury, product sale to a patient, fraud, punitive damages, or regulatory enforcement will be tried. References to development or quality practice may explain intended use and business reasonableness but shall not suggest that a fictional agency has made a finding.

Blue Ember's contentions

Blue Ember contends that the integrated shipment writings required continuous carriage between minus eighty and minus sixty degrees Celsius. It asserts that Granite Heron accepted lot BE214-VL-2409A at Solstice Gate Analytics, failed to maintain refrigeration during Fletcher staging, did not escalate promptly, and delivered after a fifty-four-minute excursion.

Blue Ember contends that the failure made the lot unsuitable for its planned validation function even though confirmatory testing did not show universal inactivity. It relies on the release specification, CTX-9 curve, custody evidence, quality disposition, planned use, and resulting replacement work.

Its gross damages position is 4.2 million dollars: 1.35 million dollars of cost embodied in the rejected lot, 850,000 dollars of incremental replacement and associated expense, and 2 million dollars of bounded delay loss. Blue Ember denies double recovery and agrees that any proven credit applies once.

Blue Ember further contends that declining Cobalt Finch's October 2 offer was reasonable because BE-214 transfer, site approval, method allocation, and readiness remained incomplete before the October 4 deadline. It disputes Granite Heron's proposed 1.5 million dollar net mitigation deduction.

Granite Heron’s contentions

Granite Heron acknowledges a recorded environmental deviation and operational failures during its custody. It disputes that the event legally caused every disposition choice and claimed loss. It emphasizes retained activity in tested samples, the distinction between a specification failure and total chemical destruction, and Blue Ember’s later business decisions.

Granite Heron challenges whether direct costs exclude ordinary development expense, whether the delay model is sufficiently certain and foreseeable, and whether contract provisions limit particular categories. It conditionally uses Blue Ember’s gross model for its mitigation arithmetic without conceding the starting amount.

The carrier contends Cobalt Finch held genuine December 2 capacity, had relevant capability, and proposed a feasible accelerated transfer. It says Blue Ember could have secured the slot and completed staged qualification rather than wait for Aurora Quay’s March 3 campaign. Granite Heron calculates 1.8 million dollars in avoidable delay less 300,000 dollars of incremental transfer and qualification cost, producing a 1.5 million dollar net deduction.

Granite Heron does not allege intentional product damage, fraud by Blue Ember’s quality personnel, or a duty to release unsafe material. Its position is that reasonable mitigation can involve managed uncertainty and need not be guaranteed.

Agreed factual foundation

The parties agree that their master agreement was executed November 1, 2023; the quality agreement on January 15, 2024; Release Specification BE214-RS-03 Revision 3 became effective August 1; the statement of work and purchase order followed August 19; and Granite Heron issued its rate confirmation September 11.

Granite Heron assumed custody at 11:20 Eastern Daylight Time on September 12, 2024. Tractor GH-4821 left the Greenville origin at 11:47 with trailer TR-7714. CryoTrace CTX-9 serial CTX9-44721 recorded a threshold crossing at 13:08, a maximum of minus 42.8 degrees at 13:37, return within the band at 14:02, and Asheville delivery at 15:26.

Blue Ember quarantined the lot and rejected it September 16. Cobalt Finch sent a capacity offer October 2, with acceptance required by 17:00 on October 4 for a campaign beginning December 2. Blue Ember declined and later used Aurora Quay’s March 3, 2025 campaign.

Agreement on these facts does not concede breach, scientific consequence, recoverability, or mitigation effect. The more detailed stipulation will identify additional agreed and disputed matters.

Issues for trial

First, the jury must determine whether Granite Heron materially failed to perform the accepted shipment contract. Second, it must decide whether a proven failure was a proximate and foreseeable cause of loss claimed by Blue Ember. The parties may present competing evidence about validation suitability without arguing that retained activity alone resolves every intended-use question.

Third, if liability and causation are established, the jury must determine gross compensatory damages by category. It must avoid duplicating original-lot value, replacement spending, time-related effects, and any reimbursement or reused work.

Fourth, Granite Heron bears the assigned burden on failure to mitigate. The jury will evaluate the availability and reasonableness of the Cobalt Finch alternative using information existing when Blue Ember had to decide, including capability, remaining qualification, timing, cost, risk, and loss likely avoided. Any deduction is a net amount.

Fifth, the Court will address legal application of contractual limitations after receiving the jury's supported answers where necessary. A disputed legal contention may be raised outside the jury's presence. Neither party may imply that procedural motions or objections are evidence.

Witness plan

Blue Ember expects to call Dr. Mira Solis as its organizational and program witness and Kellan Brooks, CPA/CFF, as its retained damages expert. It may call Adrian Locke and Tess Holloway adversely concerning Granite Heron's agreements, systems, and shipment conduct. It may also examine Dr. Nia Calder regarding the Cobalt Finch proposal.

Granite Heron expects to call Locke as its organizational representative, Holloway as Transport Operations Manager, Calder regarding capacity if not already completed, and Dr. Elodie Park as its mitigation and operations-economics expert. A witness called adversely may later be examined during the proponent's case without needless repetition.

The Court may take Calder or an expert out of the ordinary order to accommodate availability. Doing so will not shift a burden or indicate which party the Court favors. Deposition designations require advance exchange with counter-designations and objections.

No undisclosed retained expert may provide opinion testimony absent good cause. A fact witness may explain personal work and records but may not evade expert disclosure through specialized conclusions beyond the witness's role. Counsel shall confer before presenting cumulative testimony.

Documents, data, and demonstrations

The anticipated evidence includes the integrated contracts, shipment and custody records, logger rendering and source certification, refrigeration chronology, deviation materials, assay and lot-disposition evidence, replacement schedule and invoices, Cobalt Finch communications and qualification file, damages schedules, and mitigation model.

The parties will use text-based portable documents for the exercise. A graph, timeline, or calculation is a human-readable presentation and shall be traceable to an authenticated source. Counsel may not claim that a device independently reached a legal or scientific conclusion.

Exhibit numbering will be finalized at the October 3 conference. Authenticity stipulations do not concede relevance, truth of a disputed narrative, or the weight of an opinion. Proprietary process details may be described at the level necessary to decide the case without presenting a real formula or trade secret.

Demonstratives must be exchanged before use and clearly distinguished from admitted evidence. A demonstrative may summarize times or arithmetic but may not add an event absent from the record. The jury will receive admitted exhibits and the final verdict form according to the Court’s instructions.

Trial administration and motion practice

Each side receives an equal time allotment for opening, evidence, and closing, subject to reasonable adjustment. Counsel shall avoid repetitive foundation once a stipulation resolves it. Witnesses remain excluded from the courtroom except party representatives, retained experts permitted to hear relevant testimony, and persons authorized by rule or order.

Legal arguments and proffers occur outside the jury's hearing. A motion during trial must identify its procedural basis and the particular issue presented. The Court will not infer a ground that counsel does not state. A later request that depends on a trial motion remains governed by the words and timing actually used in the real exercise record.

Nothing in this order supplies or enlarges a motion at the close of evidence. The parties must make any such request on the trial record with the specificity required by the applicable rule. The jury will not be told that a party moved for judgment.

Counsel must notify the clerk before using sealed or protected material. Objections should be concise. Speaking objections, witness coaching, and argument through questions are prohibited. Sidebars will be used sparingly and summarized outside the jury's presence when necessary for a complete transcript.

Deadlines and final conference

The parties shall file their joint stipulated facts and contested-issues statement by September 19, 2025. Proposed final instructions, objections, and verdict forms are due September 26. The final witness and exhibit conference occurs October 3, with any unresolved evidentiary issue identified in a short joint notice.

Counsel must exchange exhibit copies, deposition designations, and demonstratives under the schedule previously set. Any late substitution requires prompt disclosure and a showing that the change will not create unfair surprise. Witness availability concerns must be raised before the final conference.

The courtroom opens at 8:30 each trial day, and proceedings ordinarily begin at 9:00. The parties should plan for a six-day presentation on October 6 through 10 and October 14. The Court may adjust daily hours to accommodate the jury and preserve an orderly record.

Maya Holt and Jonas Bell appear for Blue Ember. Eli Mercer and Tara Webb appear for Granite Heron. All counsel confirm that the stated claims, defenses, witnesses, and categories reflect their current good-faith trial plan.

Entry and acknowledgment

The Court adopts this final pretrial order to narrow the trial without resolving disputed evidence. No party may describe a contention section as a judicial finding. If a later ruling modifies an issue, the clerk will note the change and the Court will provide an appropriate instruction.

The parties remain obligated to supplement material information, preserve relevant sources, and disclose any credit compensating the same loss. They shall confer in good faith about authenticity, foundation, and presentation before seeking courtroom time.

SO ORDERED this September 12, 2025.

Miriam D. Carver

United States District Judge, exercise court

Acknowledged as to form and trial plan:

Holt Bell PLLC

Maya Holt and Jonas Bell

Counsel for Blue Ember Biologics, LLC

Mercer Webb PLLC

Eli Mercer and Tara Webb

Counsel for Granite Heron Logistics, Inc.

All names and events are fictional.